

		necessity for setting the trial for a time within the period fixed by section 583. This rule is well founded: the burden of keeping track of the relevant dates should properly fall on plaintiffs, because it is they who have the interest, and the statutory duty under section 583.310, to timely prosecute their cases.” (<i>Howard v. Thrifty Drug & Discount Stores</i> (1995) 10 Cal.4th 424, 434 (internal quotations omitted).) Defendant’s silence doesn’t absolve Plaintiffs of their duty to ensure their claims are timely tried. Moreover, the facts don’t support Plaintiff’s seeking equitable relief for another reason. For about two months after the dismissal of Najarro’s case, Defendant apparently was willing to honor the settlements in principle even though the five-year deadline had expired on February 17, 2026, and even though the Court already had dismissed Najarro’s case on the same basis. Plaintiffs’ counsel was on notice of that dismissal yet took no steps to protect their clients’ positions. The lack of action in the face of that notice undercuts any request for equitable relief. III. <u>Conclusion</u> For these reasons, Defendant’s motion is granted. Huerta, Deanda and Hernandez’s claims are dismissed with prejudice. As such, Huerta’s motion for leave to file a third amended complaint is denied.
14	Roe 26 A.B. vs. Anaheim Union High School District 2025-01503960	Gizem Gures's Motion to Be Relieved as Counsel of Record Slater, Slater & Schulman LLP moves to be relieved as counsel for Plaintiff John Roe 34 R.P. The motion is GRANTED. Counsel has met the requirements of CCP § 284 and CRC 3.1362. The order will be effective upon the filing of proof of service on the client.
15	William Thompson, derivatively on Behalf of The Ensign Group, Inc., vs. Keetch 2026-01584212	Motion for James W. Ducayet to Appear Pro Hac Vice The unopposed application of James W. Ducayet for admission pro hac vice is GRANTED. The moving papers comply with the requirements of CRC 9.40.
16	Vidal vs. The Winery LP 2025-01456888	Motion for Sammy Y. Sugiura to Appear Pro Hac Vice The unopposed application of Sammy Y. Sugiura for admission pro hac vice is DENIED WITHOUT PREJUDICE. The moving papers contain no proof that Sugiura has paid the application fee required by CRC 9.40(e). Paragraph 8 of Sugiura’s declaration says payment “will be” made, but there is no proof payment was in fact made to the State Bar.